

FIRST ENDORSEMENT

Chief Prosecutor, Andre Applewhite, Civilian Complaint Review Board, to Deputy Commissioner, Tarek A. Rahman, Department Advocate's Office, August 21, 2025. Contents noted. Recommend approval of the negotiated plea agreement in PODS No. C-32136 against Police Officer Sandor Burgos, Tax Registry No. 958298. The case was conferenced on August 14, 2025, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of NYPD Imposed Training, after Police Officer Burgos accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated November 14, 2024. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

DISAPPROVED

SEP 25 2025

**JESSICA S. TISCH
POLICE COMMISSIONER**

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-032136BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, BURGOS	FIRST SANDOR	M.I.	COMMAND 730
SHIELD NO. 9388	TAX REGISTRY NO. 968298	SOCIAL SECURITY NO.	DATE APPOINTED	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Sandor Burgos, on or about June 18, 2023, at approximately 2154, while assigned to 041 PCT and on duty, and in the vicinity of § 87(2)(b) Bronx County, New York, abused his authority as a member of the New York City Police Department, in that he stopped § 87(2)(b) without sufficient legal authority.	DISMISSED	TRAINING Respondent will comply with and complete re-training prescribed by the Department.
2. Police Officer Sandor Burgos, on or about June 18, 2023, at approximately 2154, while assigned to 041 PCT and on duty, and in the vicinity of § 87(2)(b) Bronx County, New York, abused his authority as a member of the New York City Police Department, in that he frisked § 87(2)(b) without sufficient legal authority.	DISMISSED	
3. Police Officer Sandor Burgos, on or about June 18, 2023, at approximately 2154, while assigned to 041 PCT and on duty, and in the vicinity of § 87(2)(b) Bronx County, New York, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) without sufficient legal authority.	DISMISSED	
 FIRST DEPUTY COMMISSIONER		8/27/25 DATE

POLICE COMMISSIONER'S APPROVAL☐ Approved☒ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER9/25/25
DATE

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

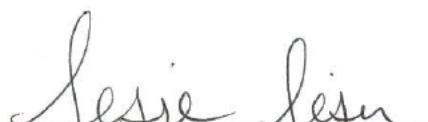
CASE NO.
C-032136BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, BURGOS	FIRST SANDOR	M.I.	COMMAND 730
SHIELD NO. 9388	TAX REGISTRY NO. 968298	SOCIAL SECURITY NO.	DATE APPOINTED	
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DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
4. Police Officer Sandor Burgos, on or about June 18, 2023, at approximately 2154, while assigned to 041 PCT and on duty, and in the vicinity of § 87(2)(b) Bronx County, New York, abused his authority as a member of the New York City Police Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.	DISMISSED	
5. Police Officer Sandor Burgos, on or about June 18, 2023, at approximately 2154, while assigned to 041 PCT and on duty, and in the vicinity of § 87(2)(b) Bronx County, New York, was discourteous, in that he spoke discourteously to § 87(2)(b) by stating to him in sum and substance, "You fucking serious? Hitting fucking cops. Shut up" without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER8/27/25
DATE**POLICE COMMISSIONER'S APPROVAL**☐ Approved☒ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER9/25/25
DATE



POLICE DEPARTMENT

September 18, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202305523 (Incident Date: June 18, 2023) involving Police Officer Sandor Burgos, Tax No. 968298 (PODS Case No. C-032136)

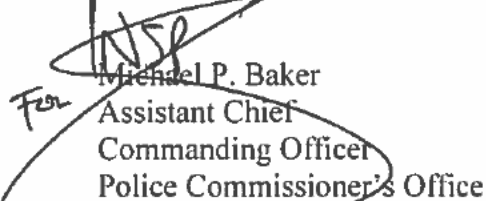
Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Sandor Burgos and determined that no disciplinary action is warranted regarding the stop and frisk allegations.

In this matter, the Police Commissioner has determined that no disciplinary action is warranted for the stop and frisk allegations. In a prior departure letter (PODS Case No C-032164) dated December 18, 2024, regarding Lieutenant Hugo Batista, the Police Commissioner determined the stop of the suspect by Police Officer Burgos was not improper. Thus, since the stop was proper, Police Officer Burgos' actions related to conducting a frisk of the suspect, suspected of possessing a firearm, was proper. The Police Commissioner does agree with the CCRB as it relates to the search, the discourtesy, and failure to provide business card allegations.

Thus, the Police Commissioner intends to dismiss the charges and specifications in this matter and impose no disciplinary action for the stop and frisk. However, the Police Commissioner agrees with the CCRB and intends to issue formalized training for the search, discourtesy, and business card allegations.

Sincerely,

For 
Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



Dr. MOHAMMAD KHALID
INTERIM CHAIR

September 25, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202305523 (Incident Date: June 18, 2023) involving Police Officer Sandor Burgos, Tax No. 968298 (PODS Case No. C-032136)

Commissioner Tisch:

I am writing in response to the letter from Assistant Chief Commanding Officer Michael P. Baker, dated September 18, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in this matter and impose no disciplinary action against Police Officer (PO) Sandor Burgos for the stop and frisk, and to issue formalized training for the search, discourtesy, and business card allegations in the herein matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Assistant Chief Commanding Officer Baker’s notification.

Assistant Chief Commanding Officer Baker stated that in a prior departure letter (PODS Case No C-032164) dated December 18, 2024, regarding Lieutenant Hugo Batista, the Police Commissioner determined the stop of the suspect by PO Burgos was not improper. Thus, since the stop was proper, PO Burgos' actions related to conducting a frisk of the suspect was proper, and as such, no disciplinary action is warranted for the stop and frisk. CCRB disagrees with your recommendation.

It is undisputed that PO Burgos stopped § 87(2)(b) based upon a 911 call which originated from an anonymous caller. Though the specificity of the information provided by the caller would have provided PO Burgos with the founded suspicion necessary to pursue an investigation of the tip, case law details that without further corroborating evidence on the scene, an anonymous call containing a detailed description of the suspect does not, alone, provide the reasonable suspicion necessary to forcibly detain an individual. *See, People v. Moore*, 6 N.Y.3d 496.¹ As § 87(2)(b) was

¹ In *People v. Moore*, 6 N.Y.3d 496 the Court found that the anonymous tip of a man with a gun is, without more, an insufficient basis for stopping and frisking a suspect because such a report lacks the reasonable suspicion required for such action. An anonymous tip clearly provides the police with the common law right to make a level two De Bour

immediately asked to exit his vehicle and then placed into handcuffs by PO Burgos, despite PO Burgos stating he did not observe any bulges or suspicion of a weapon on § 87(2)(b) PO Burgos unlawfully escalated and detained § 87(2)(b) without adhering to case law as well as to NYPD Patrol Guide 212-11, both which dictate the precedent necessary for such action.

With regards to the frisk, PO Burgos stated that the decision to frisk § 87(2)(b) was made prior to arriving at the location, based solely on the anonymous 911 call. Further, upon arriving at the location, PO Burgos did not observe any articulable bulges or evidence which further led him to believe § 87(2)(b) was armed. Despite this, PO Burgos engaged in a full body frisk of § 87(2)(b). Based on the BWC and on his own testimony, PO Burgos lacked the reasonable suspicion that § 87(2)(b) was armed and dangerous; therefore, the intrusion was unlawful.

Based upon the foregoing, CCRB requests that discipline be imposed for the Charges and Specifications against PO Burgos related to the stop and frisk in the herein matter and that the Police Commissioner accept ADCT Adler's endorsement of that portion of the plea.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.

inquiry. The common law right to inquire is activated by a founded suspicion that criminal activity is afoot and entitles a police officer to interfere with a citizen to the extent necessary to gain explanatory information, but short of a forcible seizure. Reasonable suspicion, in the context of a stop and frisk, requires that a tip be reliable in its assertion of illegality, not just in its tendency to identify a determinate person. An anonymous tip can demonstrate the tipster's reliability and thus provide reasonable suspicion of criminal activity only if it predicted actions subsequently engaged in by the suspect. To elevate the right of inquiry to the right to forcibly stop and detain, the police must obtain additional information or make additional observations of suspicious conduct which is sufficient to provide reasonable suspicion of criminal behavior